BELIEVE MANGORORO
versus
THE STATE

HIGH COURT OF ZIMBABWE
TAKUVA & CHIKOWERO JJ
HARARE; 2 & 9 February 2026

Criminal Appeal

A Timothy, for the appellant
L Chitanda, for the respondent

CHIKOWERO J:

[1] The appellant was convicted, following a trial, of 5 counts of stock theft as defined in s 114 (2) (a) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Act).

[2] He was sentenced to 9 years imprisonment per count. However, the sentence imposed on him in counts 2 and 4 were ordered to run concurrently with the sentences passed in counts 1 and 3 respectively. This left the appellant with an effective prison term of 27 years.

[3] He appealed against the whole judgment of the magistrates court.

[4] At the hearing of the appeal the appellant abandoned the appeal against his convictions as well as the sentences imposed in respect of counts 2,3,4 and 5 as well as the sentence passed on him in count 1. In doing this, the appellant abandoned the four grounds of appeal against the convictions and the sole ground of appeal against the sentences.

[5] He argued the appeal against the judgement of the magistrates court convicting him in counts 1 and 2 on the sole ground that the lower court erred in rejecting his defence of mistake of fact. That defence was simply that he took possession and ownership of the complainants' bovines under the genuine mistake that they belonged to him.

[6] As regards count 1, the lower court found that on 10 April 2024 and at a certain farm in Chivhu, the appellant stole two bovines belonging to Edmore Gogode.

[7] In respect to count 2, the court *a quo* found that on the same date and at the same farm the appellant stole one bovine belonging to Vincent Majaji.

[8] That the three bovines strayed from the first complainant's farm, where they were being kept, was not in dispute.

[9] The bovines strayed into another farm situate in Chivhu. The farm owner was one Chabata, kept them there for six months. Meanwhile, Chabata had advised the local veterinary officer of the presence of the stray bovines on his farm.

[10] A Good Samaritan took pictures of the bovines and posted the same on social media. Accompanying the pictures was a message that the stray animals where at Chabata Farm. This was to enable the owner to proceed there and take possession of the bovines.

[11] The information on social media came to the appellant's attention. Although he was not the owner of the bovines the appellant, in the company of a police officer stationed at a local police base, described the bovines whose pictures he had seen on social media, claimed ownership of the same, and drove them away. He failed to take possession of one bovine which had momentarily moved away from the others in search of greener pastures.

[12] In outlining his defence, the appellant asserted that the bovines were similar to his hence he had taken possession of the same. He asserted that he had lost his own bovines which answered to the same description as the ones which landed him in trouble.

[13] His defence became clearer in his cross-examination of the two complainants. He asserted that he did not dispute that the bovines in question belonged to the two complainants. His defence was simply that he genuinely but mistakenly believed that the bovines that he took from Chabata Farm were his own property. This defence is recognised in s 118 (1) (b) as read with s 233 of the Act.

[14] This we must say. The appellant opened and closed his defence case without giving evidence. He had, by that stage of the trial, decided to exercise his right to remain silent. His cross examination by the prosecution was met with a deafening silence from him.

[15] At the conclusion of the trial the only evidence on record as regards counts 1 and 2 was that led by the prosecution. It was not controverted by any defence evidence as already mentioned at para 14 of this judgment.

[16] In analyzing the evidence the lower court gave sound reasons for rejecting the assertions made by the appellant, while cross examining the two complainants, that he genuinely but mistakenly believed that the bovines in question were his own property. The appellant never owned any bovines in the first place. He thus could not and did not lose any. There was no factual basis for believing that the complainants' bovines were his own property. He used a false name to lay claim to the bovines and to spirit them away. He neither produced a stock card, cattle movement permit nor police clearance form to establish his claim of ownership to the bovines and to lawfully drive them away. He did not have any of these documents at the material time or at any time thereafter. All he had in his company was a rogue police officer, in uniform, to give a semblance of legality to the theft. We join the lower court in wondering why that police officer was not tried for the same offences. The appellant never made a follow up to recover the bovines when the complainants traced and recovered them from whence the appellant had taken them to. Before taking refuge in Marondera (where he was eventually arrested) the appellant had bought a stockcard from a local veterinary officer and desperately tried, but failed, to have the stolen bovines entered therein. The blank stockcard was recovered from the appellant's spouse.

[17] In all the circumstances, the lower court did not err in finding, as a fact, that the mistake of fact was not genuine. Indeed, there was no mistake of fact on the part of the appellant at all. This was a case of an offender who took advantage of information obtained from social media to steal the complainant's bovines.

[18] The lower court's finding of fact that the defence of mistake of fact was not genuine was not grossly unreasonable. That court did not take leave of its senses in so finding. Its decision to convict is not so outrageous in its defiance of logic that no sensible person who had applied his mind to the question to be decided could have arrived at it. See *ZINWA* v *Mwoyounotsva* SC 465/13; *Mbatha* v *National Foods (Private) Limited* CCZ 14/20; *Mutsure* v *State* SC 62/21 and *Musimuke* v *State* SC 104/22.

[19] In the result, IT IS ORDERED THAT the appeal be and is dismissed in its entirety.

CHIKOWERO J:.....

TAKUVA J:.....

I AGREE

Chatsama and Partners, appellant's legal practitioners
The National Prosecuting Authority, respondent's legal practitioners